

FILED
KING COUNTY, WASHINGTON
DEC 05 2008
DEPARTMENT OF
JUDICIAL ADMINISTRATION

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KING COUNTY
SUPERIOR COURT CLERK
SEATTLE, WA

**Superior Court of Washington
County of King**

In re the Custody of:

TIMOTHY E. BENNETT, II,

Child(ren),

MELVINA ROBERSON,

Petitioner(s),

and

ZACHARIAH J. BENNETT and KELLY J.
BENNETT,

Respondent(s).

No. 08-3-03956-4SEA

**Findings of Fact and Conclusions of
Law
(Nonparental Custody)
(FNFCL)**

I. Basis for Findings

The findings are based on:

☐ agreement.

☒ order(s) of default against ZACHARIAH J. BENNETT and KELLY J. BENNETT, entered on
August 12, 2008.

II. Findings of Fact

Upon the basis of the court record, the court *Finds*:

2.1 Children for Whom Custody Is Sought

The petitioner(s) are seeking custody of the following child(ren):
TIMOTHY E. BENNETT, II

2.2 County Where Children Reside

Findings/Conclusions of Law (FNFCL) - Page 1 of 6
WPF CU 02.0100 (6/2006) - CR 52; 26.10.040; .100

ORIGINAL

O. W. HOLLOWELL & ASSOCIATES
4471 Tolt Ave. P. O. Box 1041
Carnation, Washington 98014
Phone: 425-333-4848 FAX: 425-333-4884

The child(ren) named in paragraph 2.1 permanently reside in this county or can be found in this county.

2.3 Indian Child Welfare Act

Indian child status:

☐ The child(ren) are Indian child(ren) as defined by 25 U.S.C. § 1903. The Indian Child Welfare Act does apply to these proceedings; all notice and evidentiary requirements under the Indian Child Welfare Act have been satisfied, as follows:

☒ The child(ren) are not Indian children as defined by 25 U.S.C § 1903 and The Indian Child Welfare Act, 25 U.S.C. § 1901, et seq., does not apply to these proceedings.

2.4 Basis of Jurisdiction

☐ This court has exclusive continuing jurisdiction. The court has previously made a child custody, parenting plan, residential schedule or visitation determination in this matter and: retains jurisdiction under RCW 26.27.211.

☐ This state is the home state of the children because

☐ the children lived in Washington with a parent or a person acting as a parent for at least six consecutive months immediately preceding the commencement of this proceeding.

☐ the children are less than six months old and have lived in Washington with a parent or a person acting as parent since birth.

☐ any absences from Washington have been only temporary.

☐ Washington was the home state of the children within six months before the commencement of this proceeding and the children are absent from the state but a parent or person acting as a parent continues to live in this state.

☐ The children and the parents or the children and at least one parent or a person acting as a parent, have significant connection with the state other than mere physical presence and substantial evidence is available in this state concerning the children's care, protection, training and personal relationships and:

☐ The children have no home state elsewhere.

☐ The children's home state has declined to exercise jurisdiction on the ground that this state is the more appropriate forum under RCW 26.27.261 or .271.

☐ All courts in the children's home state have declined to exercise jurisdiction on the ground that a court of this state is the more appropriate forum to determine the custody of the children under RCW 26.27.261 or .271.

☐ No other state has jurisdiction.

1 [X] This court has temporary emergency jurisdiction over this proceeding because the children
2 are present in this state and the children have been abandoned or it is necessary in an
3 emergency to protect the children because the children, or a sibling or parent of the children
4 is subjected to or threatened with abuse. RCW 26.27.231.

5 [] There is a previous custody determination that is entitled to be enforced under
6 this chapter or a child custody proceeding has been commenced in a court of a
7 state having jurisdiction under RCW 26.27.201 through 26.27.221. The
8 requirements of RCW 26.27.231(3) apply to this matter. This state's jurisdiction
9 over the children shall last until _____ [Date].

10 [X] There is no previous custody determination that is entitled to be enforced under
11 this chapter and a child custody proceeding has not been commenced in a court
12 of a state having jurisdiction under RCW 26.27.201 through 26.27.221. If an
13 action is not filed in **Colorado** [potential home state] by the time the child has
14 been in Washington for six months, **September 5, 2008** [Date], then
15 Washington's jurisdiction will be final and continuing.

16 2.5 Background Records Check

17 The court has consulted the judicial information system, if available, to determine the existence
18 of any information and proceedings that are relevant to the placement of the child. The court has
19 also directed the Department of Social and Health Services to release information as provided
20 under RCW 13.50.100; and has required the petitioner to provide the results of an examination of
21 state criminal identification data provided by the Washington State Patrol criminal identification
22 system as described in chapter 43.43 RCW for the petitioner and adult members of the
23 petitioner's household.

24 2.6 Standing

25 [X] At the beginning of the case, the child(ren) had not been in the physical custody of
26 either parent since March 5, 2008.

[X] Neither parent was a suitable custodian at the beginning of the case.

27 2.7 Best Interest of the Child

28 It is in the best interest of the child(ren) to be placed in the custody of the petitioner(s), and at
29 this time:

30 [X] The child(ren) have not been in the physical custody of either parent since **March 5, 2008**
31 because: **Parent's abandoned child to Petitioner.**

32 [X] Neither parent is a suitable custodian for the child(ren), because: **Respondent**
33 **Zachariah J. Bennett has an extensive history of drug abuse, domestic violence and is**
34 **currently incarcerated in Colorado. Respondent Kelly J. Bennett has an extensive history**

1 of drug addiction and according to her parent's is currently an in-patient at a
2 rehabilitation facility in Northern California.

3 **2.8 Adequate Cause**

4 Adequate case for this proceeding has been found [X] in an order entered on **December 5, 2008**;
5 or [] is agreed as evidenced by the signatures on the last page of this document.

6 **2.9 Limitations on Visitation**

7 [] Does not apply.

8 [] There are no reasons for limiting visitation of either parent.

9 [X] The following reasons exist for limiting visitation of the

10 [X] **Father:**

11 [X] Willful abandonment that continues for an extended period of time or
12 substantial refusal to perform parenting functions.

13 [X] Physical, sexual or a pattern of emotional abuse of a child.

14 [X] A history of acts of domestic violence as defined in RCW 26.50.010(1)
15 or an assault or sexual assault which causes grievous bodily harm or the
16 fear of such harm.

17 [X] Other: **Currently incarcerated in Colorado.**

18 [X] **Mother:**

19 [X] Willful abandonment that continues for an extended period of time or
20 substantial refusal to perform parenting functions.

21 [X] Physical, sexual or a pattern of emotional abuse of a child.

22 [] A history of acts of domestic violence as defined in RCW 26.50.010(1)
23 or an assault or sexual assault which causes grievous bodily harm or the
24 fear of such harm.

25 [X] Other: **Currently is an in-patient at a rehabilitation facility in
26 California.**

[X] Limitations on visitation with the children will not adequately protect the children from
the harm that could result if the children has contact with the [X] father [] mother.

[X] Contact between the [] father [X] mother and the children will not cause physical,
sexual, or emotional abuse or harm to the children and the probability that the parent's
harmful or abusive conduct will recur is so remote that it would not be in the children's
best interest to apply the limitations of RCW 26.10.160(1)(a) and (b).

2.10 Child Support

[] Does not apply.

[X] There are children in need of support and child support should be set pursuant to the
Washington State Child Support Schedule. The Order of Child Support signed by the

court on **December 5, 2008**, and the child support worksheet which has been approved by the court are incorporated by reference in these findings.

2.11 Continuing Restraining Order

☐ Does not apply.

☒ A continuing restraining order against the ☐ father ☐ mother ☒ both parties is necessary because: Both parents threaten to remove child from State of Washington.

2.12 Attorney Fees, Other Professions Fees and Costs

☒ Does not apply.

2.13 Other

III. Conclusions of Law

The court makes the following conclusions of law from the foregoing findings of fact:

3.1 Jurisdiction

The court has jurisdiction over the children.

3.2 Disposition

It is in the best interest of the children to reside with: **Melvina Roberson.**

3.3 Child Support

☐ Does not apply.

☒ Child support for the dependent children should be set pursuant to the Washington State Child Support Schedule.

3.4 Visitation

Mother: Visitation for the mother shall be ☐ as set forth in the Residential Schedule(s) signed by the court on _____ [Date] and approved by the court and incorporated as part of these findings; or ☒ as follows: **Reasonable visitation supervised by Petitioner.**

Father: Visitation for the father shall be ☐ as set forth in the Residential Schedule(s) signed by the court on _____ [Date] and approved by the court and incorporated as part of these findings; or ☒ as follows: **None.**

3.5 Continuing Restraining Order

☐ Does not apply.

[X] A continuing restraining order should be entered.

3.6 Attorney Fees, Other Professional Fees and Costs

[X] Does not apply.

3.7 Other

Dated:

December 5 2008


Judge/Commissioner

Presented by:

Attorney for Petitioner
O.W. Hollowell

O.W. Hollowell

WSBA No. 9163

Approved by:

Notice of presentation waived:

Signature of Party or Lawyer/WSBA No.

Date

11-19-08

Print or Type Name

Date

Signature of Party or Lawyer/WSBA No.

Signature of Party or Lawyer/WSBA No.

Print or Type Name

Date

Print or Type Name

Date

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Print or Type Name

Date